

personally on the king ; nor is he, but his ministers, accountable for it to the people : and, secondly, that the prerogative of the crown extends not to do any injury ; for, being created for the benefit of the people, it cannot be exerted to their prejudice^c. Whenever therefore it happens, that, by misinformation or inadvertence, the crown hath been induced to invade the private rights of any of it's subjects, though no action will lie against the sovereign^d, (for who shall command the king^e ?) yet the law hath furnished the subject with a decent and respectful mode of removing that invasion, by informing the king of the true state of the matter in dispute : and, as it presumes that to *know of* an injury and to *redress* it are inseparable in the royal breast, it then issues as of course, in the king's own name, his orders to his judges to do justice to the party aggrieved.

THE distance between the sovereign and his subjects is such, that it rarely can happen, that any *personal* injury can immediately and directly proceed from the prince to any private man : and, as it can so seldom happen, the law in decency supposes that it never will or can happen at all ; because it feels itself incapable of furnishing any adequate remedy, without infringing the dignity and destroying the sovereignty of the royal person, by setting up some superior power with authority to call him to account. The inconveniency therefore of a mischief that is barely possible, is (as Mr Locke has observed^f) well recompensed by the peace of the public and security of the government, in the person of the chief magistrate being set out of the reach of coercion. But injuries to the rights of *property* can scarcely be committed by the crown without the intervention of it's officers ; for whom the law in matters of right entertains no respect or delicacy, but furnishes various methods of detecting the errors or misconduct of those agents, by whom the king has been deceived, and induced to do a temporary injustice.

^c Plowd. 437.

^d Jenkins. 78.

^e Finch. L. 83.

^f on Gov. p. 2. §. 205.